

SiyaBusa ERP

TERMS OF SERVICE

Legal Documents

Masaphokati Technologies (Pty) Ltd

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Department: Legal

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WE RULE. WE GOVERN. WE EMPOWER.

LEGAL AGREEMENT

Terms and conditions governing the use of SiyaBusa ERP services.

Terms of Service

Effective Date: January 1, 2026

Last Updated: January 1, 2026

Version: 1.0

1. Introduction and Acceptance

1.1 Agreement

These Terms of Service ("Terms") constitute a legally binding agreement between you ("Customer", "you", or "your") and **Masaphokati Technologies (Pty) Ltd** (Registration No. [Company Reg Number]), a company registered in the Republic of South Africa with its principal place of business at [Address] ("Masaphokati", "we", "us", or "our").

1.2 SiyaBusa ERP Service

These Terms govern your access to and use of the SiyaBusa ERP cloud-based enterprise resource planning software service, including any associated applications, tools, APIs, and documentation (collectively, the "Service").

1.3 Acceptance

By accessing, registering for, or using the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms. If you are entering into these Terms on behalf of a company or other legal entity, you represent that you have the authority to bind that entity to these Terms.

1.4 Modifications

We reserve the right to modify these Terms at any time. We will provide notice of material changes via email or through the Service at least 30 days before the changes take effect. Your

continued use of the Service after the effective date constitutes acceptance of the modified Terms.

2. Definitions

Term	Definition
Account	Your registered account to access the Service
Authorized User	Individual authorized by Customer to use the Service
Customer Data	All data uploaded, entered, or processed through the Service by Customer
Documentation	User guides, help files, and technical documentation for the Service
Intellectual Property	Patents, copyrights, trademarks, trade secrets, and other proprietary rights
Service	The SiyaBusa ERP software-as-a-service platform
Subscription	Customer's paid access to the Service for a defined term
Tenant	Customer's isolated instance within the multi-tenant Service

3. Service Access and Accounts

3.1 Account Registration

To use the Service, you must:

- Provide accurate, complete registration information
- Maintain the accuracy of your account information
- Be at least 18 years old or the legal age of majority in your jurisdiction
- Not have been previously banned from using the Service

3.2 Account Security

You are responsible for:

- Maintaining the confidentiality of your login credentials
- All activities that occur under your account

- Immediately notifying us of any unauthorized access
- Ensuring Authorized Users comply with these Terms

3.3 Authorized Users

- You may authorize users up to your Subscription limit
 - You are responsible for the actions of all Authorized Users
 - Each user account is for a single individual and may not be shared
 - You must promptly deactivate accounts of users no longer authorized
-

4. Service Description

4.1 Core Services

The Service provides cloud-based ERP functionality including, depending on your Subscription:

- Financial Accounting (General Ledger, AP, AR)
- Inventory Management
- Sales and Customer Relationship Management
- Purchase Management
- Human Resources and Payroll
- Manufacturing
- Warehouse Management
- Compliance and Reporting (SARS integration)

4.2 Service Availability

- We will use commercially reasonable efforts to maintain 99.9% Service availability
- Scheduled maintenance will be performed during off-peak hours with advance notice
- Emergency maintenance may be performed without notice when necessary
- Availability excludes factors outside our reasonable control

4.3 Updates and Modifications

We may, at our discretion:

- Update, modify, or enhance the Service

- Add or remove features or functionality
- Change APIs with reasonable notice
- Discontinue features with 90 days' notice (except for critical security reasons)

4.4 Support Services

Support is provided according to your Subscription level:

- **Starter:** Email and chat support, business hours (SAST)
 - **Professional:** Priority support, extended hours
 - **Enterprise:** Premium 24/7 support with dedicated Customer Success Manager
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5. Customer Responsibilities

5.1 Acceptable Use

You agree to:

- Use the Service only for lawful purposes
- Comply with all applicable laws and regulations
- Not exceed your authorized use or Subscription limits
- Not sublicense, resell, or share access to the Service

5.2 Prohibited Activities

You may not:

- Attempt to access systems or data not intended for you
- Reverse engineer, decompile, or disassemble the Service
- Introduce viruses, malware, or harmful code
- Interfere with or disrupt the Service or its infrastructure
- Use the Service to process data for third parties without authorization
- Remove or alter proprietary notices or labels
- Use automated systems to access the Service except via authorized APIs
- Circumvent usage limits or security measures

5.3 Data Responsibility

You are responsible for:

- The accuracy, quality, and legality of Customer Data
- Obtaining necessary consents for personal data processed
- Ensuring data complies with applicable data protection laws
- Maintaining appropriate backups of critical data

5.4 Compliance

You must comply with all applicable laws, including:

- South African law, including POPIA
 - Tax laws (including SARS requirements)
 - Industry-specific regulations
 - Export control and sanctions laws
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6. Subscriptions and Payment

6.1 Subscription Plans

We offer the following Subscription plans:

- **Starter:** For small businesses with basic ERP needs
- **Professional:** For growing companies with advanced requirements
- **Enterprise:** For large organizations with custom needs

6.2 Fees and Payment

- Fees are as quoted in your Order or published price list
- Fees are quoted exclusive of VAT unless stated otherwise
- Payment is due in accordance with the payment terms in your Order
- Late payments may incur interest at 2% per month
- We may suspend access for accounts more than 30 days overdue

6.3 Fee Changes

- We may adjust fees upon renewal with 60 days' notice

- Fee increases will not exceed 10% annually unless otherwise agreed
- You may terminate upon notice if you do not accept the new fees

6.4 Taxes

- You are responsible for all applicable taxes except our income taxes
- We will add VAT at the prevailing rate to all invoices
- You must provide valid tax documentation upon request

6.5 Refunds

- Annual subscriptions: Pro-rata refund if cancelled within 30 days
- Monthly subscriptions: No refund, service continues until period end
- Implementation services: Non-refundable once commenced

7. Intellectual Property

7.1 Our Intellectual Property

- The Service, including its design, code, and Documentation, is our property
- We retain all rights, title, and interest in the Service
- These Terms do not grant you any ownership rights
- All trademarks, logos, and service marks are our property

7.2 License Grant

Subject to these Terms, we grant you:

- A limited, non-exclusive, non-transferable license
- To access and use the Service during your Subscription
- For your internal business purposes only
- In accordance with the Documentation

7.3 Customer Data

- You retain all rights to Customer Data
- You grant us a license to use Customer Data to provide the Service
- We will not use Customer Data for any purpose other than providing the Service

- We will not sell or share Customer Data with third parties except as necessary for the Service

7.4 Feedback

If you provide suggestions, ideas, or feedback about the Service:

- We may use such feedback without obligation to you
 - Feedback becomes our property
 - We are not obligated to implement any feedback
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8. Confidentiality

8.1 Confidential Information

Each party agrees to:

- Protect the other party's confidential information
- Use confidential information only for purposes of these Terms
- Not disclose confidential information to third parties
- Take reasonable measures to prevent unauthorized disclosure

8.2 Exceptions

Confidentiality obligations do not apply to information that:

- Is or becomes publicly available without breach
- Was known prior to disclosure
- Is independently developed without use of confidential information
- Is required to be disclosed by law (with notice if permitted)

8.3 Duration

Confidentiality obligations survive termination for 3 years, except for trade secrets which remain protected indefinitely.

9. Data Protection and Privacy

9.1 Data Processing

- We process Customer Data as a data processor on your behalf
- You remain the data controller of Customer Data
- Processing is governed by our Data Processing Agreement (DPA)
- We will process data only on your documented instructions

9.2 POPIA Compliance

We comply with the Protection of Personal Information Act (POPIA):

- Appropriate security measures are implemented
- Personal information is processed lawfully and fairly
- Data subjects' rights are respected
- Data breaches will be reported as required

9.3 Data Location

- Customer Data is stored in AWS data centers in the Cape Town region
- Data may be processed in other regions for technical purposes
- We do not transfer data outside South Africa without your consent

9.4 Data Security

We implement appropriate security measures including:

- AES-256 encryption for data at rest
- TLS 1.3 encryption for data in transit
- Access controls and authentication
- Regular security assessments
- Incident response procedures

9.5 Data Retention

- We retain Customer Data for the duration of your Subscription
- Upon termination, data is retained for 90 days then deleted
- You may export your data at any time during the Subscription
- Extended retention is available upon request

10. Warranties and Disclaimers

10.1 Our Warranties

We warrant that:

- The Service will perform materially as described in the Documentation
- We have the right to grant the licenses in these Terms
- We will provide the Service using reasonable skill and care
- The Service will comply with applicable laws

10.2 Your Warranties

You warrant that:

- You have authority to enter into these Terms
- You will use the Service in accordance with these Terms
- Customer Data does not infringe third-party rights
- You have obtained necessary consents for personal data

10.3 Disclaimer

EXCEPT AS EXPRESSLY PROVIDED:

- THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE"
- WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED
- WE DO NOT WARRANT THAT THE SERVICE WILL BE ERROR-FREE
- WE DO NOT WARRANT UNINTERRUPTED OR SECURE ACCESS
- WE ARE NOT RESPONSIBLE FOR THIRD-PARTY SERVICES

11. Limitation of Liability

11.1 Exclusion of Damages

TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY SHALL BE LIABLE FOR:

- Indirect, incidental, special, or consequential damages
- Loss of profits, revenue, or business opportunities

- Loss of data (except as provided in Section 9)
- Damages arising from third-party claims
- Damages exceeding the limitation in Section 11.2

11.2 Liability Cap

Our total aggregate liability under these Terms shall not exceed:

- The fees paid by you in the 12 months preceding the claim; or
- R500,000 (five hundred thousand South African Rand)

whichever is greater.

11.3 Exceptions

The limitations in this section do not apply to:

- Breach of confidentiality obligations
 - Indemnification obligations
 - Gross negligence or willful misconduct
 - Death or personal injury caused by negligence
 - Fraud or fraudulent misrepresentation
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12. Indemnification

12.1 Our Indemnification

We will defend, indemnify, and hold you harmless from claims that the Service infringes a third party's intellectual property rights, provided:

- You notify us promptly of the claim
- We have sole control of the defense and settlement
- You provide reasonable assistance at our cost

12.2 Your Indemnification

You will defend, indemnify, and hold us harmless from claims arising from:

- Your use of the Service in violation of these Terms
- Customer Data infringing third-party rights

- Your violation of applicable laws
- Your breach of these Terms

12.3 Infringement Remedies

If the Service is held to infringe, or we believe it may infringe, we may:

- Obtain rights for you to continue using the Service
 - Modify the Service to be non-infringing
 - Replace the Service with a non-infringing alternative
 - Terminate your Subscription with a pro-rata refund
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13. Term and Termination

13.1 Term

- These Terms commence on account registration
- Subscription term is as specified in your Order
- Subscriptions automatically renew unless cancelled

13.2 Termination for Convenience

- Monthly subscriptions: Either party may terminate with 30 days' notice
- Annual subscriptions: Either party may terminate at renewal with 60 days' notice

13.3 Termination for Cause

Either party may terminate immediately if:

- The other party materially breaches these Terms and fails to cure within 30 days
- The other party becomes insolvent, bankrupt, or enters liquidation
- Required by law or regulatory authority

13.4 Effect of Termination

Upon termination:

- Your access to the Service will cease
- You must pay all outstanding fees
- We will provide data export access for 90 days

- After 90 days, Customer Data will be deleted
- Sections that by their nature should survive will survive

13.5 Survival

The following sections survive termination: Definitions, Intellectual Property, Confidentiality, Data Protection (as applicable), Warranties and Disclaimers, Limitation of Liability, Indemnification, and General Provisions.

14. Dispute Resolution

14.1 Governing Law

These Terms are governed by the laws of the Republic of South Africa.

14.2 Informal Resolution

Before initiating formal proceedings, the parties will attempt to resolve disputes informally through designated representatives for a period of 30 days.

14.3 Mediation

If informal resolution fails, the parties agree to submit the dispute to mediation administered by the Arbitration Foundation of Southern Africa (AFSA) before pursuing arbitration or litigation.

14.4 Jurisdiction

Subject to successful mediation, the courts of South Africa shall have exclusive jurisdiction over any disputes arising from these Terms.

15. General Provisions

15.1 Entire Agreement

These Terms, together with any applicable Order, Privacy Policy, and DPA, constitute the entire agreement between the parties and supersede all prior agreements.

15.2 Amendment

These Terms may only be modified:

- In writing signed by both parties; or

- Through our modification process in Section 1.4

15.3 Assignment

You may not assign these Terms without our written consent. We may assign these Terms to an affiliate or successor.

15.4 Notices

Notices must be in writing and delivered to:

- **To us:** legal@siyabusa.com or [Physical Address]
- **To you:** Your registered email address or billing address

15.5 Force Majeure

Neither party is liable for delays or failures due to circumstances beyond reasonable control, including natural disasters, war, terrorism, labor disputes, or government actions.

15.6 Severability

If any provision is held invalid, the remaining provisions continue in effect. Invalid provisions will be modified to the minimum extent necessary.

15.7 Waiver

Failure to enforce any provision does not constitute a waiver of that provision or any other provision.

15.8 Independent Contractors

The parties are independent contractors. Nothing creates an employment, partnership, or agency relationship.

15.9 Third-Party Rights

Except as expressly provided, these Terms do not create rights for third parties.

15.10 Language

These Terms are executed in English. In case of translation, the English version prevails.

16. Contact Information

Masaphokati Technologies (Pty) Ltd

General Inquiries: info@siyabusa.com

Support: support@siyabusa.com

Legal: legal@siyabusa.com

Phone: +27 XX XXX XXXX

Address: [Physical Address], South Africa

17. Acceptance

By clicking "I Accept", creating an account, or using the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms of Service.

Document Control

Version	Date	Changes
1.0	January 1, 2026	Initial release

SiyaBusa ERP - Powering African Business

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